

Donation Act, 1974

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Donation Act, 2030

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Amending Acts

1. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24

2. Act to Amend Some Nepal Acts, 2054 2054.1.7

Certification and Publication Date

3. Republic Strengthening and Amendment of Some Nepal Laws Act, 2066 2066.1.7

4. Act to Amend Some Nepal Acts, 2072 2072.11.13

5. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.1.19

Act No. 3 of the year 2030

An Act Made to Make Provisions Relating to Donations

Preamble: Whereas, it is desirable to regulate the utilization and operation of the amount of donations received from the general public for educational, social institutions and other development works in order to maintain the convenience and economic interest of the general public,

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title, Extent and Commencement: (1) This Act may be called the "Donation Act, 2030".

(2) This Act shall extend throughout Nepal omitted by the Republic Strengthening and Amendment of Some Nepal Laws Act, 2066..

(3) This Act shall come into force immediately. 2. Definition: In this Act, unless the subject or context otherwise requires,-

(a) "Committee" means a committee constituted pursuant to Section 4.

(b) "Donation amount" means both cash and kind. 3. Prohibition on Raising Donations: (1) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. No person, government or non-government office or institution shall raise or receive donations from anyone except for voluntary donations without fixed rates for religious, charitable or other public works with prior approval of the Government of Nepal or the Provincial Government.

(2) Notwithstanding anything contained in Sub-section (1), donations may be raised under this Act from the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. provincial level committee constituted pursuant to Section 4, specifically for educational, social

institutions and other development works, with the purpose of spending in accordance with the rules made under this Act. 4.

Constitution of Donation Collection Committee: (1) If it appears necessary and appropriate to raise donations pursuant to Sub-section (2) of Section 3, the Government of Nepal may, by publishing a notice in the Nepal Gazette, Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. and the Provincial Government, by publishing a notice in the Provincial Gazette, constitute a Donation Collection Committee Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. comprising a maximum of eleven members nominated by the Government of Nepal and a maximum of seven members nominated by the Provincial Government, ensuring representation from local industry and commerce associations and educational associations and institutions. (2) The term of office of the Chairperson and members of the committee constituted pursuant to Sub-section (1) and the procedure for meetings of the committee shall be as specified in the notice published at the time of constituting the said committee. (3) If the Committee deems necessary, it may constitute district level sub-committees under the chairpersonship of the Chief of the concerned Amended by the Act to Amend Some Nepal Acts, 2072. District Coordination Committee. 5. Approval Must Be Obtained Before Raising Donations: After the Committee determines the amount to be raised from donations and the method of raising such amount, it shall prepare a detailed description of the work or plan on which such amount will be expended and submit it for approval to the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Government of Nepal or the Provincial Government, and only after obtaining approval shall donations be raised accordingly. 6. Donation Receipt: While raising donations under this Act, donation receipts shall be printed as follows, and donations shall be raised only on the basis of such receipts. (a) The name and address of the printing press printing the donation receipt must be printed on the receipt. (b) The donation receipt must have a serial number. (c) Three copies of the receipt must be compulsorily printed on each page of the donation book. Out of those three copies, one copy must be given to the donor, one copy must remain with the donation collector, and one copy must be sent to or remain in the office of the Auditor General. (d) In the receipt printed for donation collection, the words 'Cash' and 'Kind' given by the donor must also be printed by the printing press. (e) Each receipt of donation must bear the stamp of the Committee's office and the signature of the Member Secretary as an endorsement. 7.

Accounts of Donation: (1) Accounts of donations raised or to be raised under this Act shall be kept in accordance with the general financial regulations of the Government of Nepal. (2) The accounts kept pursuant to Sub-section (1) must also be audited at least once in a fiscal year, like the accounts of the Government of Nepal, by a government or non-government institution or person designated by the Auditor General, and the audit report must be published for the information of the general public. (3) It shall be the duty of the Member Secretary of the Committee to keep the donation amounts raised under this Act safe in the following manner: (a) In the case of cash part of the donation amount raised under this Act, it must be deposited in the nearest Nepal Rastra Bank or any commercial bank or in the revenue and treasury office, and the operation of the account must be done by the joint signatures of the Chairperson and Member Secretary of the Committee. (b) In relation to kind, a complete description including measurement and weight must be prepared, and full arrangements must be made to prevent loss or misappropriation and stored safely. (4) With regard to works commenced from donations raised before the commencement of this Act which have not been completed, records must be kept and accounts published under this Act. (5) A complete register must be prepared stating how many receipts have been printed for raising donations and what the serial numbers of the receipts are. (6) When distributing donation receipt books, distribution must be done only after obtaining an acknowledgment containing full details. (7) Records kept under this Act must be

presented for inspection when requested by the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Government of Nepal, Provincial Government, Auditor, or the Committee, and must be settled within thirty-five days from the receipt of such request, or within such extended period as the Committee may specify. 8. Utilization of Donation: (1) The procedure for utilization and collection of the donation amount raised under this Act shall be managed by the Committee itself, subject to Sub-section (2) of Section 3. (2) Omitted by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. 9.

Transfer of Donation Amount: If the work for which donations were raised under this Act is to be carried out from some other source or if, for some reason, its implementation does not take place, and if the donation amount so raised is to be transferred for use in some other work, approval of the Government of Nepal must be obtained. Added by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Provided that, if the donation amount raised by a committee constituted by the Provincial Government is to be transferred, approval of the Provincial Government must be obtained. 10. Publication of Details of Donation: A statement of income and expenditure of donations raised under this Act, along with details of the work done from such donations, must be published once in each fiscal year. 11. Collection of Donation: While raising donations under this Act, the person collecting donations must clearly write the amount, in figures or words, or the measurement and weight as necessary, of the donation given by the donor on the three copies of the receipt and sign them. Provided that, writing or signing with ink pencil or other erasable ink is prohibited. 12. Government of Nepal or Provincial Government May Give Directions: Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. (1) The Government of Nepal may give necessary directions to the Committee. (2) The Provincial Government may give necessary directions to the committee constituted by the Provincial Government. (3) It shall be the duty of the concerned Committee to comply with the directions given pursuant to Sub-section (1) or (2). 13. Punishment: A person who raises donations in contravention of this Act or the rules made under this Act, or by coercion, shall be liable to imprisonment for a term up to two years or a fine up to two thousand rupees or both, and the donation amount so raised shall also be recovered from him as a government due. 14. Government to be Plaintiff and Authority to Hear Cases: The Government of Nepal shall be the plaintiff in cases under this Act, and the authority for the initial proceedings and final adjudication of such cases shall be Amended by the Judicial Administration Reform (Fourth Amendment) Act, 2043. the District Court. 15. Power to Make Rules: The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. 16. Repeal: The Donation Rules, 2024 are hereby repealed.